

2. 9:00 AM CASE NUMBER: C24-00566
CASE NAME: LA TONYA BROOKS VS. GEICO INDEMNITY COMPANY
*HEARING ON MOTION IN RE: STRIKE 4TH AMENDED COMPLAINT
FILED BY: GEICO INDEMNITY COMPANY
TENTATIVE RULING:

Denied as moot. See line 3.

3. 9:00 AM CASE NUMBER: C24-00566
CASE NAME: LA TONYA BROOKS VS. GEICO INDEMNITY COMPANY
HEARING ON DEMURRER TO: 4TH AMENDED COMPLAINT
FILED BY: GEICO INDEMNITY COMPANY
TENTATIVE RULING:

Before the Court is Defendant Geico Indemnity Company's Demurrer to Plaintiff's Fourth Amended Complaint ("FAC").

Defendant's Request for Judicial Notice is **granted**.

Factual Allegations and Procedural Background

Plaintiff filed her initial complaint on March 11, 2024. Geico filed a motion to quash and a demurrer to the complaint. While the demurrer was pending, Plaintiff filed a First Amended Complaint on July 2, 2024. Geico filed a demurrer and motion to strike directed toward the First Amended Complaint – which were not opposed by Plaintiff. As such, the Court sustained the demurrer and granted the motion to strike. The Court granted Plaintiff leave to amend.

On November 7, 2024, Plaintiff filed a Second Amended Complaint. Geico again filed a demurrer and motion to strike. On January 16, 2025, while the demurrer and motion to strike were pending, Plaintiff filed a Third Amended Complaint. The Court ultimately sustained the demurrer and granted the motion to strike relating to the Second Amended Complaint. The Court again granted leave to amend, noting that "the Third Amended Complaint filed on January 16, 2025, is accepted by this court as the current operative complaint."

Geico filed a demurrer and motion to strike directed toward the Third Amended Complaint. The Court sustained the demurrer in full and granted Plaintiff leave to amend.

Plaintiff filed her Fourth Amended Complaint ("4AC") on October 21, 2025. The 4AC alleges four causes of action against Defendant Geico: (1) Breach of Written Contract; (2) Breach of Implied Covenant of Good Faith and Fair Dealing; (3) Bad Insurance Faith, and (4) Negligence. Geico demurs to each of the causes of action as being uncertain and for failure to allege facts to support each cause of action.

Standard for Demurrer

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and

with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099 (“*Doheny*”).)

Legal conclusions are insufficient. (*Id.* at 1098–99; *Doe* at 551, fn. 5.) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.) A demurrer lies only for defects appearing on the face of the complaint or from matters of which the court must or may take judicial notice. (CCP 430.40; see *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Analysis

The Court notes that Plaintiff does not substantively address any of Geico’s arguments in her Opposition to the Demurrer. Instead, she casts aspersions on Geico’s counsel and argues that the reason she did not attach or quote from her insurance policy is because she did not have a copy and Geico refused to provide her with a copy.

Plaintiff boldly asserts: “**GEICO has systematically and intentionally withheld those exact policy documents from Plaintiff from the inception of this case.**” (Opp. at 1:24-25 bold in original.) She states that she was “forced to bypass defense counsel entirely, utilizing the California Department of Insurance (Consumer Services Case No. 8717650) and formal discovery mechanisms to compel production.” (*Id.* at 1:25-26.) She says she only received the Policy documents after the 4AC was drafted.

On Reply, Geico’s counsel makes clear that Plaintiff’s contentions are false – or at least misleading. In fact, Plaintiff did not even **request** a copy of the Policy until **after** she filed her Fourth Amended Complaint. The Fourth Amended Complaint was filed on October 21, 2025, and Plaintiff’s Request for Production of Documents (Set One) is dated April 27, 2026 – over six months later. (LeHendro Dec. Ex. E.) This was the first time Plaintiff requested a copy of the Policy. (*Id.* ¶ 8.)

As for the need to ‘bypass defense counsel’ and utilize the California Department of Insurance process, Geico requests judicial notice of the Request for Assistance (“Request”) filed by Plaintiff. (RJN Ex. C.) It shows that Plaintiff submitted her request on the same date she served her request for production of documents – April 27, 2026. Again, this was six months after she filed her 4AC. The Request indicates that Plaintiff had **not** contacted Geico before submitting the Request. The fact that she submitted her Request on the same date she formally requested a copy of the Policy from defense counsel undermines her claim that she was “forced to bypass defense counsel.”

The Court will remind Plaintiff that “Pro. Per litigants are held to the same standards as attorneys.” (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543.) Thus, courts “see no reason why the rules of professional conduct, at least as those rules govern conduct in the actual course of litigation, should not apply to pro per litigants in the very cases where pro per litigants elect to act as their own attorneys.” (*Ibid.*) “To say otherwise would be to give pro per litigants ... an unfair advantage over parties represented by attorneys bound by the code.” (*Ibid.*) “Under those rules, an attorney may not intentionally mislead the court. [citation] Neither may a pro per.” (*Ibid.*)

Making false or misleading arguments to the Court is not acceptable when done by an attorney. Nor are they acceptable when made by a self-represented litigant. “[S]elf-represented litigants ‘must expect and receive the same treatment as if represented by an attorney – no different, no better, no worse.’” (*Nuno v. California State University, Bakersfield* (2020) 47 Cal.App.5th 799, 811 quoting *Taylor v. Bell* (1971) 21 Cal.App.3d 1002, 1009.) Plaintiff is warned that she will be held to the same

standards as counsel in these proceedings and should act accordingly.

As to the substance of GEICO's arguments, Plaintiff appears to concede that the 4AC is deficient. She notes in her Opposition that with the "insurance contract explicitly in hand, a 5AC will flawlessly cure" all Geico's concerns about the 4AC. (Opp at 4:2-3.) She also clearly states that the "Demurrer can be fully cured in a Fifth Amended Complaint." (Opp. at III B.)

It is accepted that the failure to challenge a contention in a brief results in the concession of that argument. (*DuPont Merck Pharmaceutical Co. v. Superior Court* (2000) 78 Cal.App.4th 562, 566 ["By failing to argue the contrary, plaintiffs concede this issue"]; *Westside Center Associates v. Safeway Stores 23, Inc.* (1996) 42 Cal.App.4th 507, 529 ["failure to address the threshold question ... effectively concedes that issue and renders its remaining arguments moot"]; *Glendale Redevelopment Agency v. Parks* (1993) 18 Cal.App.4th 1409, 1424 [issue is impliedly conceded by failing to address it].) By failing to substantively address Geico's arguments, Plaintiff concedes all the contentions and arguments in the moving papers.

While the Court is not impressed with Plaintiff's actions in these proceedings, especially the meritless claims against counsel for Geico, it is mindful of the fact that Plaintiff only recently obtained the Policy which she claims provides the basis for her claims. The main argument made by Geico throughout these proceedings is that Plaintiff has failed to attach the Policy or identify specific portions thereof that support her claims. Granted Plaintiff should have sought a copy of the Policy long ago. However, now that she has the Policy, as well as the Guarantee which Geico also provided, Plaintiff should be given leave to amend a final time to attempt and properly plead her case.

Generally, leave to amend should be given unless the complaint 'shows on its face that it is incapable of amendment.' (*Tarrar Enterprises, Inc. v. Associated Indemnity Corp.* (2022) 83 Cal.App.5th 685, 688 citation omitted; *Eghtesad v. State Farm General Ins. Co.* (2020) 51 Cal.App.5th 406, 412.) "[I]t is a rare case in which 'a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.'" (*Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal.App.2d 527, 530 quoting *Guidery v. Green* (1892) 95 Cal. 630, 633.)

Conclusion

Defendant's demurrer is **SUSTAINED**. Plaintiff is **GRANTED** leave to amend. Plaintiff shall file any amended complaint within 21 days of notice of entry of this order.

4. 9:00 AM CASE NUMBER: C25-00149
CASE NAME: AMIR SAFFARIAN VS. ALI HASSAN
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: ARREAGA, GUILLERMO ARMANDO MARTINEZ
TENTATIVE RULING:

Plaintiffs' Demurrer to the First Amended Cross-Complaint was inadvertently vacated from the calendar. That motion is reset for hearing to **September 21, 2026, at 9:00 a.m. in Department 34**. The Martinez Defendants' Demurrer to the Second Amended Complaint, currently set for July 20, 2026, is **continued** to the same date so both matters may be heard together.

Plaintiffs' counsel shall give notice of this order to all parties.